

Calendar Line 1

Case Name: *Gonzalo Petrez v. General Motors, LLC, et al.*

Case No.: 24CV447989

This is a case brought under the Song-Beverly Consumer Warranty Act (the “Act” or “Lemon Law”) for failure to repair in a timely manner (Second Cause of Action; Civil Code § 1793.2(b)) and failure to replace the vehicle or reimburse the buyer after a reasonable number of attempts to repair (First Cause of Action; Civil Code § 1793.2(d)). Plaintiff also alleges a claim for violation of Civil Code § 1793.2(a)(3), alleging that Defendant General Motors, LLC (“GM”) “failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts during express warranty period,” which Plaintiff claims was willful. Complaint, ¶¶ 32-33.

Fundamentally, Song-Beverly established a statutory framework for enforcing express and implied warranties of motor vehicles in the state, and imposed civil penalties for manufacturers who “willfully” fail to satisfy their obligations under the Act.

In this motion, Plaintiff seeks to compel two broad categories of requests from its first set of requests for productions (“RFPs”):

1. Documents relating to GM’s internal investigations and analyses of the “Transmission Defect plaguing Plaintiff’s vehicle and establishing that Defendant knew of such defects but nevertheless refused to repurchase the vehicle” (RFPs 16-21, 59)(hereinafter referred to as “Category One Requests”), and
2. Documents “relating to Defendant’s warranty and vehicle repurchase policies, procedures, and practices (RFPs 7, 34-39, 42, 50) (hereinafter referred to as “Category Two Requests”).

Defendant opposes the motion, claiming, *inter alia*, that the requests seek irrelevant information, and are overbroad and burdensome.

The briefing in this case is characterized by excessive vitriolic rhetoric by both sides. Plaintiff claims, without citation, that GM “routinely” responds to discovery in an “obstructionist, bad faith manner.” Motion at 1. For its part, GM claims that “Plaintiff is playing games,” and contends that in unidentified cases, Lemon Law Plaintiffs are swamping courts “with these extraordinarily broad, apparently standard or stock discovery requests that are being pulled out of the back pockets of plaintiffs’ counsel.” Keshishian Decl., ¶ 9.

The Court is not impressed by this form of advocacy. In fact, the Court views this motion as the product of a reasonable difference of opinion over the scope of discovery in this Lemon Law case. Both sides make reasonable arguments. No one need be vilified for taking the positions they have taken in this motion.

At issue in this motion is the extent to which, if at all, Plaintiff is entitled to GM internal materials that do not specifically refer or relate to Plaintiff's vehicle, a GM Sierra 2500 HD. Plaintiff claims they are relevant to defendant's awareness of the Transmission Defect, would show that the defect is not repairable and are relevant to Plaintiff's Third Cause of Action seeking a civil penalty.

Defendant emphasizes that this is a breach of warranty case, not a product liability case, and that the requested materials are not relevant to Plaintiff's warranty claims. Defendant points out the materials it has produced, which appear to include all materials directly relevant to Plaintiff's vehicle and repair history (Plaintiff does not contend otherwise), as well as "a list of technical service bulletins ('TSBs') and information service bulletins ('ISBs') applicable to vehicles of the same year, make and model as [Plaintiff's vehicle], as well as specific bulletins and/or recalls." (GM Opp. at 1.)

I. Category One Requests

In considering whether to open the door to discovery of materials relating to vehicles other than Plaintiff's, a threshold question is to identify the defect that Plaintiff is alleging, in order to determine what other materials might bear on the alleged defect.

Here, Plaintiff uses the shorthand "Transmission Defect" to describe the alleged defect afflicting his vehicle, which he defines in the RFPs as:

Defects which result in symptoms including: illumination of the Check Engine Light; Diagnostic Trouble Code P0747; transmission control solenoid valve 1 stuck on; performance of a Transmission Control Module (TCM) software update; Diagnostic Trouble Code P0700; clutch pressure control solenoid valve stuck on; performance of a TCM relearn; and any other concern identified in the repair history for [Plaintiff's vehicle].

Pl. Sep. State. at 2.

Plaintiff describes three visits to the repair shop: first, when Plaintiff brought the vehicle in for repair on May 3, 2024, Defendant identified Diagnostic Trouble Code (“DTC”) P0747 (corresponding to “transmission control solenoid valve 1 stuck open”) Second, on May 10, 2024, Defendant identified DTCs P0747 and P0700 (apparently corresponding to “clutch pressure control solenoid valve stuck on”). He does not provide any detail for his third visit on May 14, 2024, apart from that the engine light was illuminated.

Plaintiff broadly states that “Defendant is and has been aware of the widespread Transmission Defect in 2023 GMC Sierra 2500 HD vehicles, including Plaintiff’s vehicle.” He further claims that “Defendant has issued numerous Technical Service Bulletin documents which acknowledge the existence of the Transmission Defect . . .” Motion at 2.

Of these “numerous” TSBs, Plaintiff only points to two TSBs that he claims are relevant to the “Transmission Defect.” TSB 24-NA-124 notes that some drivers of GMC Sierra 2500 HD vehicles may experience a “Check Engine Light” and that a technician can recover DTCs, including P0700. The bulletin notes that the cause may be related to the Engine Control Module harness. TSB 22-NA-182 notes that some drivers of the GMC Sierra 2500 HD vehicle may complain of harsh shifting, shuddering, surging, stalling, and/or transmission overheating, due to a twisted cooler line.

Plaintiff claims that this list of TSBs is “not exhaustive,” but marshals no others in support of his argument that the requested materials are discoverable.

As noted above, Plaintiff does not identify in his motion what specific problems he experienced with his transmission, apart from the engine light going on. He does not, for example, identify in the motion whether he is alleging that he experienced the “harsh shifting, shuddering, surging, stalling, and/or transmission overheating” referred to in TSB 22-NA-182. He does reference the DTCs identified by GM during the first two repair visits, but includes no details as to the relevance of those DTCs – were they the cause of whatever performance symptoms Plaintiff was experiencing?

GM’s objection that the Category One Requests are overbroad and unduly burdensome is SUSTAINED. Plaintiff has failed to show how such materials are relevant to the specific issues he experienced with his vehicle. The Category One Requests are overbroad and violate the “reasonable particularity” requirement of Code of Civil Procedure § 2031.030 (c)(1).

Plaintiff's reliance on *Donlen v. Ford Motor Co.* (2013) 217 Cal. App. 4th 138 as a reason to compel a further response to RFP No. 30 is off point and not persuasive. *Donlen* analyzed the admissibility of expert witness testimony at trial, *id.* at 144, 148-151, *not* the underlying merits of a discovery request like Plaintiff's here. Similarly, *Doppes v. Bentley Motors* (2009) 174 Cal.App.4th 967 considered the imposition of terminating sanctions for discovery violations. *Id.* at 991.

In *Velasco v. Mercedes-Benz USA, LLC*, 2019 U.S. Dist. LEXIS 222387 (C.D. Cal., June 13, 2019), the Central District of California distinguished *Donlen* and rejected a motion to compel similar discovery sought in another Lemon Law case for many reasons:

To begin with, [Plaintiff's] definition of ENGINE DEFECT"—which includes such terms as 'including but not limited to' and 'symptoms'—violates [the] 'reasonable particularity' requirement. Such definitions are 'vastly overbroad' and 'make it virtually impossible for responding party to understand' what documents to produce.' *Putman v. BMV of N. Am., LLC*, 2018 U.S. Dist. LEXIS 227126 at * 4 (C.D. Cal. May 21, 2018). Moreover, the requested documents are not relevant and proportional for garden variety Lemon Law claims. *See, e.g., Kooner v. BMW v. N. Am., LLC*, 2019 WL 3956021, at *3 (S.D. Cal. Aug. 17., 2018) (Beverly-Song actions focus 'not on other vehicles, [but] on a defendant's conduct towards the subject vehicle.');

Putman, 2018 U.S. Dist. LEXIS 227126, at * 4. ('Under California law, [] the relevant evidence needed to prove liability under the Song-Beverly Act are records concerning a plaintiff's specific vehicle.') (citing *Krotin v. Porsche Cars N. Am., Inc.*, 38 Cal. App. 4th 294, 303 (1995) (holding that plaintiff's request for all documents relating to cars nationwide of same make, model, and year as plaintiff's vehicle overburdensome given limited relevance.)).

Velasco, 2019 U.S. Dist. LEXIS 222387, at *2-3.

The Court finds persuasive and agrees with the reasoning of *Velasco* and the cases it cites above in all respects. The motion to compel RFPs 16-21, 59 is DENIED.

II. Category Two Requests (RFPs 7, 34-39, 42, 50)

The Category Two requests seek materials relating to the policies, practices and training of its employees concerning handling requests for repurchase or refunds, call center "scripts" concerning the Transmission Defect and the organizational chart of the call center and "prelitigation department." GM objects to these requests as not relevant, overly broad and burdensome. Plaintiff claims these materials to be relevant to his Third Cause of Action for a civil penalty.

Plaintiff is right that the Act includes a civil penalty provision for a willful failure to comply with the Act. And Plaintiff has asserted the Third Cause of Action alleging a violation thereof, specifically, that GM "failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts during express warranty period." It is not exactly clear how these alleged actions constitute a violation of Civil Code section 1793.2(a)(3). But assuming that they would, the requested materials go far beyond this allegation. In summary, the requests are as follows:

- RFP 7: the Warranty Policy and Procedure Manual from 2019 to present.
- RFP 34: documents used to evaluate requests for repurchase under the Act
- RFP 35: rules, policies or procedures since 2019 concerning refunds
- RFP 36: procedures for handling disputes
- RFP 37: scripts etc. used at call center concerning "Transmission Defect"
- RFP 38: policies, procedures related to evaluating a request for refund
- RFP 39: policies, procedures to follow after GM authorizes a refund or replacement
- RFP 42: organization charts of customer service call center or prelitigation dept
- RFP 50: training materials in connection with handling lemon law repurchase requests.

These categories go well beyond the “sufficient service literature and replacement parts” provided to repair facilities allegation in the Third Cause of Action.

In addition, and notably, Plaintiff has not drawn to the Court’s attention anything remarkable about GM’s conduct in this Lemon Law case. GM evidently denied Plaintiff’s request for replacement and/or reimbursement of the cost of his vehicle. That fact, standing alone does not give rise to an inference of willful conduct.

The Category Two Requests are not reasonably calculated to lead to the discovery of admissible evidence, are overbroad and are in some respects burdensome. Plaintiff has not given the Court any reason to believe that GM “willfully” violated its obligations under the Act and for that reason, the Court will not order Plaintiff’s access to these materials. Plaintiff’s motion to compel them is DENIED.

IT IS SO ORDERED.

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Calendar Line 2

Case Name:

Case No.:

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Calendar Line 3

Case Name:

Case No.:

- oo0oo -

Calendar Line 4

Case Name:

Case No.:

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